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STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

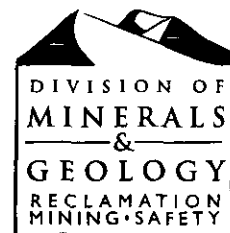
Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

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Bill Owens
Governor

Greg E. Walcher
Executive Director

Ronald W. Cattany
Acting Division Director

December 30, 2002

Mr. John Lohr
CEMEX
P.O. Box 529
Lyons, CO 80540

RE: CEMEX, Inc., Lyons Mine, Permit No. M-1977-208
Recap of 12-18-02 Meeting

Dear Mr. Lohr,

CEMEX, INC. and the Division discussed three issues during the 12-18-02 meeting. The intent of this letter is to recap the issues for revised groundwater monitoring parameters related to burning of tires in the cement plant, reclamation and bonding of the cement plant, and the bond release status of the Larimer Pit, Permit No. M-1977-341.

Tire Burning: The issue related to tire burning in the cement plant is the possibility of change in the geochemistry of the cement kiln dust (CKD). The Division believes that a change in the fuel content may result in potential changes to the nature of CKD. The Division's regulatory authority for CKD is to ensure that groundwater impacts are minimized both during mining and reclamation of the site (C.R.S. 34-32.5-116(4)(h) of the Colorado Land Reclamation Act for the Extraction of Construction Materials).

Discussions with CDPHE suggest that the complete combustion of tires would eliminate all organics. Tire burning involving either complete or incomplete combustion also has the potential to release metals to the residues. However, incomplete combustion could release semi-volatiles to the ash and the ash in turn might release those to groundwater. The Division recommends testing that involves volatile-organic compounds, and focusing on compounds that act as indicators. As recommended in the Division's letter of November 20, 2002, CEMEX should consult with an organic chemist on this matter.

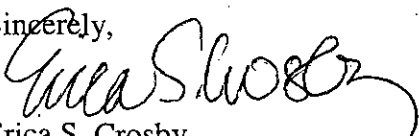
Reclamation and Bonding of the Cement Plant: In a letter dated October 28, 2002, the Division provided two options for CEMEX regarding reclamation and bonding of the cement plant that is located within the permit boundary of the Lyons Quarry. The first option is to change the postmining land use to industrial/commercial in the form of a permit amendment, and include a letter from Boulder County Land Use Department stating that the cement kiln facility can remain as a part of the postmining end land use once the operation is no longer in use. The second option is to post a bond for reclamation of the cement facility in accordance with the 1977 reclamation plan.

A third issue discussed at the meeting involves removing the cement plant from the permit area and having the cement plant and CKD regulated by another agency. Attached is a 1999 DMG Memo regarding issues of long-term storage at limestone mines. In particular, the Division met with representatives from Holnam, the American Portland Cement Alliance, and the Hazardous Materials and Waste Management Division (HMWMD) where it was determined that DMG is the appropriate agency to regulate CKD disposal. Any variance from this may require future discussions between CEMEX, DMG and HMWMD.

Larimer Pit M-1977-341: The Division briefly discussed the status of the bond release request (SL-01) for the Larimer Pit. The inspection report of 12-6-02 outlines the reasons for denial of the release request.

If you have any questions, please do not hesitate to call me at 303-866-4943.

Sincerely,



Erica S. Crosby
Environmental Protection Specialist

Enclosure (12-3-1999 Cement Kiln Dust: Issues of Long-term Storage at Limestone Mines)

cc: Bruce Humphries; DMG
Carl Mount; DMG
Harry Posey; DMG



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DIVISION OF MINERALS AND GEOLOGY Department of Natural Resources

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Date: December 3, 1999
(Finalized January 16, 2001)

To: Bruce Humphries
Jim Stevens
Carl Mount
Tom Gillis

Bill Owens
Governor
Greg E. Walcher
Executive Director
Michael B. Long
Division Director

From: Harry Posey *HP*
Allen Sorenson *AS*

M-1977-348
TR-03

Subject: Cement Kiln Dust: Issues of Long-term Storage at Limestone Mines

BACKGROUND AND PERSPECTIVE

In August 1999 the Environmental Protection Agency Office of Solid Waste proposed management standards for Cement Kiln Dust (CKD) waste. The following statements are taken from EPA's Environmental Fact Sheet issued at the time of the announcement of the proposed CKD management standards.

- Although current disposal practices cause some environmental damage, the Agency found that regulating cement kiln dust as a hazardous waste was not appropriate. Since some controls are needed, EPA is proposing a tailored set of standards for managing cement kiln dust waste.
- The Agency's preferred option is to provide management standards whereby CKD remains a nonhazardous waste so long as the waste is managed according to the requirements. Cement kiln dust becomes a regulated hazardous waste only if significant violations of the management standards occur.
- Under EPA's proposed standards, cement kiln dust is to be managed in landfills designed to meet specific performance requirements that protect ground water from toxic metals. In addition to performance criteria, the Agency is proposing technology-based standards that meet the performance criteria, such as using composite liners in landfills. Requirements for ground-water monitoring, corrective action, closure, and post-closure care are also included.
- To control releases of cement kiln dust to air, EPA is proposing performance standards requiring facility owners and operators to take measures to prevent releases from landfills, handling conveyances, or storage areas. As an alternative to the performance-based standard, the Agency is proposing technology-based standards that require: (1)

compacting and periodic wetting of CKD managed in landfills; (2) on-site handling of CKD in closed, covered vehicles and conveyance devices; and (3) keeping cement kiln dust in enclosed tanks, containers, and buildings when temporarily stored for disposal or sale.

There are three cement plants in Colorado. The Mined Land Reclamation Board holds permits on the limestone quarries associated with each of these plants as follows:

Holnam Inc., Portland Quarry, Florence, M-77-344.
Holnam Inc., Boettcher Quarry, Fort Collins, M-77-348
Southdown Inc., Lyons Quarry, Lyons, M-77-208

On August 5, 1998 representatives from Holnam, the American Portland Cement Alliance, DMG and the Hazardous Materials and Waste Management Division discussed potential regulatory management of CKD. Holnam's position on CKD management was as follows:

- Protective management standards for the disposal of CKD are appropriate.
- In Colorado, the Hazardous Materials and Waste Management Division and/or DMG have authority to regulate CKD management.
- By exercising existing state authority, Federal rule may be unnecessary.
- Holnam wants to facilitate state agencies obtaining statutory authority to regulate CKD management.
- Holnam seeks stringent regulation of management practices under state authority.

As determined by DMG and Hazardous Materials and Waste Management Division, DMG is the appropriate agency to regulate CKD disposal for the following reasons:

- All of the cement plants in Colorado dispose of CKD in mined out limestone quarry pits. CKD disposal in the quarries at all three sites has been ongoing for tens of years, and DMG has jurisdiction over the environmental impacts and reclamation of the quarries.
- DMG routinely permits and regulates the disposal of mining or processing waste generated from within a reclamation permit area. DMG does not generally regulate the landfilling of imported waste unless it meets the definition of inert waste in Rule 1.1(20). By bringing the areas of the cement plant where CKD is generated, stored or transported into the reclamation permit (see below), CKD becomes in effect a mining/mineral processing waste that DMG may regulate.
- DMG is the implementing agency for groundwater protection at active mines and thereby has the capacity to monitor for pollutants that may derive from CKD disposal.
- DMG has the authority to require stabilization of landfilled CKD, by periodic cover application or water application, to prevent dust generation (34-32.5-116(4)(j), C.R.S.).
- DMG has the authority to require final closure and reclamation of CKD landfills within the reclamation permit area.

CKD landfills not regulated in accordance with EPA's proposed standards may be cited as unpermitted hazardous waste facilities. To this end, all three of Colorado's cement facilities

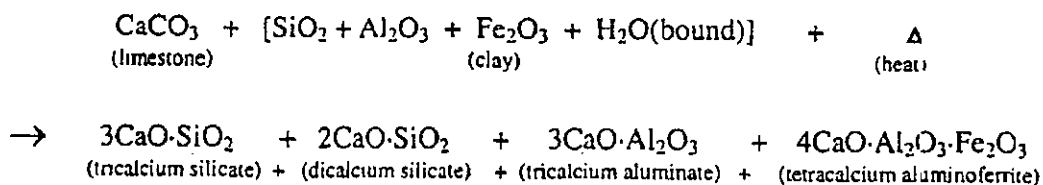
have submitted technical revisions to incorporate CKD disposal standards into their reclamation permits. The technical revisions detail the geochemistry of the CKD, ground water protection measures and monitoring, dust control, and closure and reclamation. The procedure being followed by the DMG is to incorporate the CKD disposal standards into the permit through the technical revision process, then to include all areas of the operation where CKD is generated, temporarily stored, or transported into the permit through an amendment. From a regulatory standpoint, approval of the amendment makes the CKD an onsite rather than an imported waste. From a technical standpoint, the cement plant must be included in the reclamation permit area in order to provide regulatory controls over the generation of the CKD, e.g., the types of fuel or chemicals used in the kilning process, which may effect the geochemistry of the CKD. In particular, if a cement plant were to begin using alternative fuels such as wood, tires, or waste oil, the potential changes to the nature of the CKD should be evaluated.

This memo discusses some of the details of CKD generation and disposal at the three Colorado cement plants. A discussion of the geochemistry of cement and CKD are provided for background.

The Holnam-Boettcher operation and the Southdown-Lyons operation have completed waste characterization studies and have established groundwater monitoring programs. The Holnam-Portland operation has completed waste characterization and some groundwater monitoring, and the Division is processing a TR for continued CKD disposal at the Portland plant. Based on (a) leach test results, (b) chemical analysis of pit water adjacent to one of the quarries, and (c) CKD waste handling commitments, groundwater monitoring may be perfunctory in some cases because the potential for off-site damage is limited. The latter point – "CKD waste handling commitments" – was most important in reaching that determination and is discussed in the following sections.

PRODUCTION, CHEMISTRY, AND PROPERTIES OF CEMENT

Cement is produced by burning limestone and clay at around 2700°F in a horizontal, inclined rotary kiln. It can take up to 2 hours for the raw materials to pass through the kiln depending on its length. Moving down the cylinder, the mixture progresses through four stages of transformation. Initially, free water is driven off. Next, calcination occurs as bound water and carbon dioxide are liberated. After calcination, the limestone has been converted to lime (CaO). In the third or clinkering stage, lime and decrepitated clay combine to form calcium silicates and calcium aluminates (see equations following). The fourth stage involves cooling of the clinker. In some cement plants, the first three steps all occur in the same kiln; in other plants, the process occurs in separate calciners and cement kilns.



Compounds on the product side of the above equation comprise about 90 percent of portland cement. The two calcium silicates form approximately 75 percent of cement by weight. When water reacts with the two calcium silicates, tobermorite gel and calcium hydroxide are produced.

Tobermorite gel is the main cementing component of cement paste. Natural tobermorite is $\text{Ca}_5\text{Si}_6\text{O}_{16}(\text{OH})_2 \cdot 4(\text{H}_2\text{O})$.

The average diameter of a grain of portland cement as ground from the clinker is about 10 μm (microns). The particles of the hydration product, tobermorite gel, are on the order of a thousandth that size. The enormous surface area of the gel (about 3 million cm^2/g) results in very large attractive forces, or cementation.

It is through water addition and cement hydration that curing and hardening occur. Concrete does not "dry out" to harden, as is commonly thought. If concrete actually dries, or loses water, it stops getting stronger. The reaction of water with cement in concrete may continue for many years after the concrete is poured, and the strength of the concrete will continue to increase. Each of the basic components of portland cement contribute to its behavior. Upon the addition of water to cement, tricalcium silicate rapidly reacts to release calcium ions, hydroxide ions, and a large amount of heat. The pH quickly exceeds 12 due to the release of hydroxide (OH^-) ions (which are alkaline). This reaction is primarily responsible for the high early strength of hydrated portland cement. Hydrated tricalcium silicate compound attains most of its strength in 7 days.

Dicalcium silicate takes several days to set. It is primarily responsible for the later-developing strength of portland cement paste. Since the hydration reaction proceeds slowly, the heat of hydration is low. Hydrated dicalcium silicate compound produces little strength until after 28 days. Tricalcium aluminate exhibits an instantaneous or flash set when hydrated. It is primarily responsible for the initial set of portland cement and gives off large amounts of heat upon hydration. Gypsum added to portland cement during grinding of the clinker combines with tricalcium aluminate to control the time to set. Hydrated tricalcium aluminate compound develops very little strength, and shows little strength increase after one day, but is useful in varying concentrations and in combination with gypsum to control set times. Fast setting cement, with high concentrations of tricalcium aluminate, is less resistant to sulfate attack. Tetracalcium aluminoferrite also hydrates rapidly and develops only a low strength, but it does not exhibit a flash set.

CEMENT KILN DUST

Cement kiln dust (CKD) is a by-product of cement manufacturing. CKD is an inorganic material collected by air pollution control devices in portland cement manufacturing plants and is the finely-divided particulate matter carried from the cement kiln by exhaust gases. The dust is composed of variable mixtures of calcined and uncalcined feed materials, fuel combustion byproducts, condensed alkali compounds, and fine cement clinker formed during the high temperature processing. Alkalis may be concentrated in the dust through volatilization in the high temperature zones in the kiln then condensed in the exhaust gases as they pass through the dust collection system. The composition of CKD varies depending on production conditions and the nature of the raw material and fuel. The actual form of the components may typically be:

Calcium Carbonate (CaCO_3)	10 percent
Available Lime (as CaO)	30-50 percent
Potash (as Na and K salts)	6-10 percent
Chloride	4 percent

Recalling the stages of cement clinkering in the kiln, it can be seen that the CKD example above is made up of the raw materials for clinker manufacture, which are limestone (CaCO_3) and calcined limestone or lime (CaO). It makes sense that the kiln exhaust would contain dust made up of pre-clinker raw materials, because by the time clinker is formed the material is molten and would not produce much dust. Most cement plants recycle their kiln dust into the kiln. However, complete recycling is not possible due to a build up of undesirable elements as discussed below. CKD is not portland cement and does not exhibit the complex cementitious properties of portland cement. For most CKD, the chemical and physical behavior is dominated by the lime (CaO) component. CKD contains little calcium silicate, which is the basic ingredient of cement. Continuous recycling of CKD concentrates alkalis (potassium and sodium), chloride, and sulfate, which adversely affect the clinkering process and force the kiln operator to shunt a certain percentage of CKD. Recycled CKD also concentrates metals making recycled CKD disposal potentially likely to release metals to the environment.

This memo distinguishes between what is termed "fresh" CKD and "weathered" CKD. These materials differ in their physical properties and in their response to leach testing, metals mobility, and effects on pH. These differences are discussed. Some CKD may contain large quantities of calcined feed materials, alkalis and sulfur compounds, or both, while others may be primarily composed of uncalcined raw feed. Many CKDs are easily compacted and reactive with small quantities of water to form a low strength cementitious mass; some may show only mild reactivity and be non-consolidating. The following discussion of "fresh" and "weathered" CKD assumes a limey CKD.

"Weathered" CKD. As discussed above, most CKD is largely composed of lime (CaO). Lime is a simple cementing material produced by driving free water and carbon dioxide from limestone (calcining). Its cementing properties arise from the reabsorption of the liquid and gas that has been expelled and the formation of chemical compounds similar to the original limestone raw material. Left exposed to the atmosphere, CKD will react, cure and harden. Its ultimate composition will become *limestone*. Thus, in that regard, "weathered" CKD is not CKD at all. It is limestone.

What will actually form when CKD is exposed to the atmosphere is a cohesive mass that looks like rock but which is soft, easily broken, and which can be pulverized with gentle abrasion even in the hands. In this memo, this type of CKD is called "weathered" CKD. "Weathered" CKD is distinguished from "fresh" CKD, described following.

"Fresh" CKD. The lime in "fresh" CKD – CKD that has not been exposed to the atmosphere – has a strong affinity for water. Exposed to atmospheric moisture or meteoric water, fresh CKD begins to hydrate or slake. To fully slake CKD, it would have to be thoroughly mixed with two to three times its weight of water. This is unlikely to occur in most CKD disposal areas, in a short period, but some portion of disposed CKD will slake – more so if placed in a water filled pit. When lime in CKD combines with water, calcium hydroxide forms via an exothermic reaction. The product is a finely divided calcium hydroxide which, upon cooling, stiffens to a putty and will eventually season and cure to weathered CKD. Incomplete slaking of CKD, which is the likely situation at a quarry disposal site, will likely result in a variable mass of weathered and fresh CKD and hydrated CKD present as a fine powder. Unless there is significant dilution, CKD in water will increase pH. Paste pH measurements can range up to 12.

Source of CKD Pollutants. Fully "weathered" CKD, which is mostly limestone, tends strongly not to release metals when placed in water. If pulverized, metals can be released, but pH should not increase; slight increases in pH would be due to presence of unweathered CKD containing mostly CaO. Release of metals due to pulverization is a surface area effect, alone; any rock, if crushed or ground, will release more metal to solution in a fixed period of time than that same rock will release if left uncrushed. Because pulverization generates a high surface area, some "weathered" CKD can release high metals.

Elements present in clay or limestone prior to their kilning for cement manufacture may appear in the dissolved form when "fresh" CKD is placed in water. The major and trace element compositions of the clay and limestone prior to calcining determines what elements may appear dissolved in the water to which "fresh" CKD is added. Most of the dissolved metals come from clay, not limestone. As discussed previously, volatile metals tend to concentrate in CKD at kilns that employ continuous CKD recycling.

Limestone (CaCO_3) typically does not contain significant concentrations of trace elements other than strontium because the calcite structure accommodates elements only of specific charge and size. Locally, Zn and/or Ba can be high in some limestones, but most other trace elements appear at low levels. Moreover, limestones selected for cement manufacture typically are chosen for their low percentage of impurities (clay and other silicates), so they tend toward more pure limestones - high CaCO_3 rocks. Thus, the limestone raw material component cannot contribute much dissolved metal when lime or "fresh" CKD is exposed to water.

Clay minerals, however, tend to contain high concentrations of many trace elements, relative to most major rock forming minerals. Informally, clay minerals are termed "collector" minerals because their structures accommodate elements covering the complete range of atomic radii and charge. While these elements may be tightly bound in the clay minerals and not significantly released during weathering, the process of calcining breaks bonds, disrupts the mineral structure, and frees up both the major elements and associated trace elements from the clay minerals. Thus, elements that may be released when CKD is exposed to water come dominantly from the calcined clay minerals. It follows that the pollutants which may derive from CKD in water will differ depending on the type of shale and its particular suite of clay minerals.

LEACH TESTING

Some of the above characteristics of CKD have become evident in part through leach testing conducted by the companies involved. Leach tests conducted on "fresh" CKD differ extremely from "weathered" CKD. The results are characteristic not only of the "type" of CKD but also the leach method.

"Weathered" CKD leach tests yielded small amounts of metals by most leach methods, but never high pH. Natural water samples collected below "weathered" CKD piles tended not to show elevated metals or anomalous pH.

"Fresh" CKD leach tests produced elevated concentrations of several metals, regardless of the leach test method. "Fresh" CKD also produced high paste pH and leachate solution pH. "Fresh" CKD disposed in ponded water produced a high pH pond.

CKD HANDLING

From these tests, it is evident that CKD chemistry is affected by weathering. "Fresh" CKD bag-house dust is very reactive if placed directly in water. However, "fresh" CKD placed in thin layers on the ground where precipitation can reach will typically harden and cure to become a layer of pulverulent material similar to plaster or whitewash and consisting largely of calcium carbonate (limestone). If a CKD disposal plan calls for spreading in thin layers within a disposal cell, the CKD should be wetted to prevent fugitive dust emissions during spreading operations.

Disposal of CKD into water would not allow it to harden or cure. Disposal in water would result in elevated pH and may facilitate leaching of metals. Disposal below the natural ground water table should be viewed with circumspection. Disposal into quarry pits filled with surface water should follow only after adequate evaluation of the potential for leachate formation and migration, and in connection with down gradient ground water monitoring. The fact that a quarry pit fills with surface water is a good indication that the quarry is cut into low permeability strata, and the leachate migration will be minimal. CKD disposal should not occur in a floodplain unless it is demonstrated that the flood would not wash CKD into the stream.

CKD DISPOSAL

Based on field examinations of the three CKD sites, leach test results, and surface and groundwater analyses, the following general recommendations for CKD disposal are suggested. These suggestions distinguish between "fresh" CKD and "weathered" CKD - "fresh" CKD being that which is collected directly from a bag-house, and "weathered" CKD being that which has been in contact with the atmosphere, rain or snow for several weeks.

1. "Fresh" CKD should not be placed directly in ponded water. If conditions require such disposal, or if such disposal occurs inadvertently, the Division should institute groundwater monitoring.
2. "Fresh" CKD should *never* be placed, or allowed to be placed inadvertently, in open flowing water or in areas, such as flood plains, where open flowing water may reach the "fresh" CKD prior to a few weeks of curing.
3. "Fresh" CKD should be spread in thin layers (no more than a few feet thick) and immediately watered. Watering will help control dust and will aid the transformation from CKD to limestone. (Watering is effectively accomplished at the Holnam Portland Quarry in Florence where fresh CKD is covered with sewer sludge.)
4. Except where "weathered" CKD is to be subsequently covered and thereby disturbed, "weathered" CKD should not be significantly disturbed so as to re-pulverize it.

GROUNDWATER MONITORING PARAMETERS

Groundwater monitoring generally seems unnecessary unless "fresh" CKD is to be exposed to surface waters or unless "weathered" CKD is to be pulverized and exposed to groundwater. However, the degree of "freshness" or "weathering" in CKD may be difficult to evaluate, and universal monitoring at disposal sites might best be implemented.

1. Where groundwater monitoring is deemed appropriate, it is recommended that a representative suite of indicator elements be developed from site specific CKD leach tests and ambient groundwater conditions. Because clay compositions differ from site to site, a single set of parameters would not be appropriate.
2. Monitoring parameters should ideally consist of elements or compounds that consistently report above detection limits in groundwater samples and that consistently report above regulated limits in CKD leach tests.
3. Where sewer sludge, compost, or other organic materials or amendments may come into contact with the CKD, or where reducing conditions can be expected to result, Mn might be used as a monitoring parameter. Mn is a typical component of limestone and can be mobilized under reducing conditions. Use of Mn for monitoring might be given extra consideration to account for current uncertainty by EPA about the actual health-based toxicity of manganese. Where Mn (or other regulated parameter) excursions might raise local alarms without leading to health-based protections, its selection as a monitoring parameter should be weighed.
4. Even though high alkalinity is a feature of "fresh" CKD weathering, it is not recommended that pH alone be used as a monitoring parameter where pollution from high pH might be anticipated. Because pH is a logarithmic representation of hydrogen ion activity, a unit shift in pH represents a 10-fold increase (or decrease) in H^+ activity. For instance, a pH 8 solution contains 1000 times greater hydrogen ion activity than a pH 11 solution; thus, unless the pH 11 solution comprises an extremely high percentage of a pH 8 and pH 11 solution mixture, pollution by the high pH solution would be masked and not detectable. A 50:50 mixture could not be detected.
5. Until the degree of variability on the dust source is well established, periodic leach testing of the CKD should be conducted. The technical revision for the Holnam Boettcher Plant, for instance, requires TCLP testing on CKD samples semi-annually.

REFERENCES

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Adelaide Brighton Cement, Birkenhead Division, "CKD Product Information."

EPA Federal Register Document, August 1999, "Standards for the Management of CKD."

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cc: Mike Long
Jim Pendleton